AAR-INDAMER
Aircraft Maintenance Infrastructure Company

# THIRD PARTY QUESTIONNAIRE

***Data Privacy Statement***

The information you provide in this Questionnaire will be used by the AAR Indamer Technics to help achieve compliance with applicable anti-corruption laws. The questions have been tailored to seek only information that is relevant to AAR Indamer Technics. AAR Indamer Technics will store this information as long as necessary in connection with the purposes described above in accordance with AAR Indamer Technics' policies and procedures.

AAR Indamer Technics may obtain further information about you and your business from the references and other parties identified in your response and will use such information for the purposes described above. The information obtained in connection with this Questionnaire may be transmitted to AAR Corp. employees or agents, AAR's external legal counsel and/or regulatory or other authorities in the United States or other countries outside your country of residence/business, whose laws protecting personal information may not be equivalent to those in your own country. The information may also be transmitted to AAR Indamer Technics employees or agents or AAR Indamer Technics' external legal counsel. However, the information collected through this Questionnaire and from your references and other parties, will not be used, transmitted, or processed for any other purposes other than those described above.

Failure to entirely and truthfully complete this Questionnaire may preclude you from doing business with AAR Indamer Technics. If you have any questions or concerns about the above, please consult with your contact at AAR Indamer Technics.

## 1. Contact Details:

| | |
|---|---|
| Today's Date: | 17.01.2019 |
| Applicant's full legal name: | NIHVA Technologies Pvt. Ltd. |
| Business Address: | 187, G-Block, 1st Floor, Thermax Chowk, MIDC, Above Renault Showroom, Chinchwad, Pune. 411019 |
| Telephone: | 020 - 66304033 |
| Fax: | |
| E-Mail: | sales@nihva.com |
| Website: | www.nihva.com |

(a) List all other names under which Applicant has conducted business, including all "doing business as" names and the time period each name was used. Attach separate pages if necessary:

| Name | Dates Used |
|---|---|
| No other name | - |
| - | - |

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(b) Applicant's type of business (Check one):

___Individual
___Sole Proprietorship
___Corporation
___Partnership
___LLC
___Other (Specify) Private Limited

**2. Information on Ownership, Management, and Key Employees of Applicant**
***(If the Applicant is an individual or sole proprietorship, skip to Question 3(c))***

(a) Are shares of the Applicant's organization publicly listed and, if so, where?

No.

(b) For privately-owned entities, list all of Applicant's owners. For publicly-traded entities, list each shareholder holding more than 5% of Applicant's outstanding shares.

| Owner/Shareholder Name | Ownership % | Nationality (if applicable) |
|---|---|---|
| Vijay Mahadeo Tarak | 76% | |
| Darshana Vijay Tarak | 24% | |

(c) List the owners of any entity shareholders of the Applicant that are listed in the response to question 2(b).

| Shareholder Name | Ownership % | Nationality (if applicable) |
|---|---|---|
| — | | |

(d) List the members and nationality(ies) of the Applicant's board of directors (or provide a link to where the following information is available):

| Board Member Name | Nationality |
|---|---|
| Vijay Mahadeo Tarak | Indian |
| Darshana Vijay Tarak | Indian |

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(e) List the directors and principal officers of the Applicant's organization (or provide a link to where the following information is available)

| Officer Name | Title | Nationality |
|---|---|---|
| Vijay Mahadev Tarak | Director | Indian |
| Darshana Vijay Tarak | Director | Indian |

(f) List all employees of the Applicant's organization who may be providing substantial services to AAR Indamer Technics. **Include/attach each person's CV/Resume as part of the questionnaire response.**

| Employee Name | Title | Nationality |
|---|---|---|
| Vijay Tarak | Director | Indian |
| Mallikarjun Patil | Sales Engineer | Indian |
| Sagar Parkale | Project & Sr. Engr. | Indian. |

(g) What are the total number of employees at the Applicant's organization? Fifty

(h) What are the Applicant's annual revenues? ₹. 8.5 Crores.

**3. Nature and History of Applicant's Business Operations:**

(a) Date of incorporation/formation (attach certificate of incorporation (or equivalent)):
*(If you cannot provide this document, please describe why it is not possible to provide.)*
Fifth day of July Two thousand Twelve.

(b) Commercial Registration Number/Business License or Registration (attach copies of registration certificate and any required licenses or permits):
*(If you cannot provide this document, please describe why it is not possible to provide.)*
Registration No. U72900PN2012PTC 143948 2012-2013
GST Registration No. 27AAECN0437H1ZM

(c) Type of services Applicant will provide to AAR Indamer Technics or an affiliate of AAR Indamer Technics (e.g., consulting, customs clearance, distribution, sales):
Sales & Servicing

(d) Does the Applicant have pertinent experience in providing such services? (✓ Yes) (___ No)
*If yes, describe the nature and timeframe for such previous experience(s) and the approximate number of other customers or clients that receive the services*
Mega Doors - Three
Sliding Gate - Twelve

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(e) What qualifications and experience does Applicant have to represent AAR Indamer Technics in each country it proposes to provide services to AAR Indamer Technics?

Authorised dealers for Assa Abloy Entrance Systems. Solely one service & commissioning agents for Assa Abloy in India. Completed more than 300 projects in ~~last~~ different foods, Customised material handling equ. for SPM

(f) Does the Applicant plan to use any other entities or individuals other than Applicant's own employees to perform the services for AAR Indamer Technics under the proposed agreement? (___ Yes) (✓ No)

*If yes, identify the name and address of each entity or individual, their relationship to Applicant, and the activities they will perform*

## 4. Affiliated Relationships and Conflicts of Interest

(a) Has the Applicant or any key employee or senior management member of Applicant's organization ever been employed by or performed services for AAR Indamer Technics, any AAR Indamer Technics affiliate, AAR Corp. or Indamer Aviation Private Ltd.?

(___ Yes) (✓ No)

*If yes, provide the relevant time period, job description or type of services and the applicable supervisor or AAR point of contact*

(b) Does the Applicant or any key employee or senior management member of Applicant's organization, it subsidiaries or affiliates, have any financial interest or arrangement with any officer, director, or employee of AAR Indamer Technics, any AAR Indamer Technics Affiliate, AAR Corp., Indamer Aviation Private Ltd.? (___ Yes) (✓ No)

*If yes, provide a description of the financial arrangement and the name of the relevant officer, director or employee*

(c) Does the Applicant or any key employee or senior management member of Applicant's organization, or its subsidiaries or affiliates, have a position of responsibility (e.g. officer, director, principal, shareholder, partner, or owner) with any business interest of any officer, director, or employee of AAR Indamer Technics, any AAR Indamer Technics affiliate, AAR Corp. or Indamer Aviation Private Ltd.? (___ Yes) (✓ No)

*If yes, provide a list, including the position held and the time period it was held*

(d) Is the Applicant or any key employee or senior management member of Applicant's organization related (by blood, marriage or otherwise) to any officer, director, or employee of AAR Indamer Technics, any AAR Indamer Technics affiliate, AAR Corp. or Indamer Aviation Private Ltd.?

(___ Yes) (✓ No)

*If yes, explain each such relationship*

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(e) Has Applicant ever been, or is Applicant currently, in a business relationship with a **customer or prospective customer** of AAR Indamer Technics, any AAR Indamer Technics affiliate, AAR Corp. or Indamer Aviation Private Ltd.? (___ Yes) (✓ No)
*If yes, describe (include dates and explanation)*

(f) Has Applicant ever been, or is Applicant presently, in a business relationship with a **competitor, or potential competitor**, of AAR Indamer Technics, any AAR Indamer Technics affiliate, AAR Corp. or Indamer Aviation Private Ltd.? (___ Yes) (✓ No)
*If yes, describe (include dates and explanation)*

(g) Does the Applicant intend to utilize a sub-agent sub-contractor or sub-distributor while providing services to AAR Indamer Technics? (___ Yes) (✓ No)
*If yes, please provide the name and address of proposed sub-agent, sub-distributor or sub-contractor as well as a description of the need for such persons and the activities each will perform*

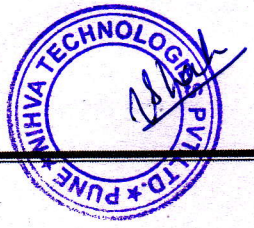
## 5. Applicant's Relationships with Government Organizations or "Public Officials"

"Public Officials" include:

- Persons holding legislative, administrative, military or judicial office for any country
- Persons exercising a public function for any country, government or governmental agency
- Employees of a government-owned or controlled enterprise
- Officials or agents of public international organizations such as the World Bank, International Monetary Fund and the World Trade Organization; and/or
- Candidates for political office and officials of political parties.

(a) Is the Applicant or any key employee or senior management member of Applicant's organization a Public Official?
(___ Yes) (✓ No)
*If yes, please provide a list of all government offices and positions held. Indicate whether these are appointed or elected positions, and for how long the person concerned held such positions.*

(b) Is the Applicant or any key employee or senior management member of Applicant's organization related (by blood, marriage, current or past business association or otherwise) to a Public Official? (___ Yes) (✓ No)
*If yes, please describe the relationship between such person(s) and the Public Official(s).*



(c) Is the Applicant or any shareholder or owner in Applicant's organization owned in any part by a Public Official or a person related to a Public Official? ( ___ Yes) (✓ No)
*If yes, please list the Public Official(s) and their total percentage ownership interest*

(d) Does the Applicant or any key employee or senior management member of Applicant's organization provide financial or any other benefits to a Public Official or a member of a Public Official's family (e.g. educational or medical assistance, housing)? ( ___ Yes) (✓ No)
*If yes, provide a list of all benefits given, the name of each recipient, and his or her relationship to the Public Official.*

(e) Does any Public Official or a member of a Public Official's family have any interest, or stand to benefit in any way, as a result of the proposed agreement with AAR Indamer Technics? ( ___ Yes) (✓ No)
*If yes, please explain*

(f) Has the Applicant or any of its owners, principal officers, directors or employees (or any close relatives of such parties), working on behalf of AAR Indamer Technics, now or in the past been an employee or an official of any political party? ( ___ Yes) (✓ No)
*If yes, please explain*

(g) Has the Applicant or any of its owners, principal officers, directors or employees (or any close relatives of such parties), working on behalf of AAR Indamer Technics, now or in the past been a candidate for any political party of government office? ( ___ Yes) (✓ No)
*If yes, please explain*

*(h)* Will the Applicant or any employee of the Applicant interact with any government or government official (including employees of state-owned companies) in connection with its work for AAR Indamer Technics?
( ___ Yes) (✓ No)
*If yes, please provide the details including names of government official(s) and address(es).*

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**6. Applicant's References and Resources.** Please provide references below, including (i) at least one bank or principal supplier and (ii) at least two other clients or organizations with whom Applicant has business relationships.

| | Name | Address | Phone No. | Email |
|---|---|---|---|---|
| Bank Reference | Sandvik Asia Pte Ltd | Sandvik Asia Pte Ltd Mumbai-Pune Road, Dapodi, Pune 411012 | 8408880333 | Mr. Mayuresh Prabhune |
| Reference 1 | Lupin Ltd Pune | Lupin Sushanpashan pune | 9765800430 | Mr. Prashant Kulkarni |
| Reference 2 | Lupin Ltd Nagpur | Lupin Ltd Mihan Nagpur | 9930242878 | Mr. Satish Ambilvade |

**7. Legal Requirements and Qualifications**

(a) In which countries will the Applicant provide services to AAR Indamer Technics?

India

(b) Does each of the countries where you will provide services to AAR Indamer Technics:

i. Require you to be a citizen of that country? (✓ Yes) (___ No)
*If yes, please explain how you meet that requirement.*
We have office in India & have 30 Nos. of trained staff for commissioning & Servicing.

ii. Require that representatives or agents of foreign principals be registered with the appropriate government agency? (✓ Yes) (___ No)
*If yes, please identify the agency(ies).*
—

iii. Require that a principal-agent/representative agreement be recorded or filed with the appropriate government agency? (___ Yes) (___ No)
*If yes, please identify the agency or agencies.*
—

**8. Anti-Corruption Compliance Information**

(a) Does the Applicant have an anti-corruption compliance program and/or an ethics/code of conduct program, whereby directors, officers, employees and agents of the Applicant are required to comply with all applicable laws and regulations, including the U.S. Foreign Corrupt Practices Act ("FCPA"), the UK Bribery Act ("UKBA"), and/or local laws and regulations in each country where the Applicant will provide services to or on behalf of AAR Indamer Technics?
(✓ Yes) (___ No)
*If yes, provide copies and/or descriptions of Applicant's code of conduct, anti-corruption compliance policies and whistle blowing channels.*

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(b) Do all of Applicant's employees (including senior management and all other personnel) who will perform services for AAR Indamer Technics receive and/or will they periodically receive, training on compliance with relevant anti-corruption laws and regulations? (✓ Yes) (___ No)
*If 8b is yes, please provide the certification and date of certification of all employees who will perform services for AAR Indamer Technics?*

(c) Has the Applicant or any owner, principal officer, director or employee ever experienced allegations of bribery, improper payments, corruption, or other compliance concern?
(___ Yes) (✓ No)
***If yes,** describe (include all details, names, dates, and explanations)*

**9. Legal Proceedings**

(a) Has the Applicant or any of its directors, officers, employees or agents previously been accused of violating any anti-corruption law, in particular the FCPA, the UKBA or the Indian Prevention of Corruption Act, or engaging in any practice which would be deemed to be the making of an improper payment to a customer or Public Official? (___ Yes) (✓ No)
***If yes,** please describe (include names, dates, and explanations)*

(b) Has the Applicant had any government audit investigations, penalties, or liquidated damages?
(___ Yes) (✓ No) ***If yes,** please describe.*

(c) Within the last 10 years, has the Applicant filed for bankruptcy or had any tax liens or Judgments filed against it? (___ Yes) (✓ No)
***If yes,** please describe.*

(d) Has the Applicant or any key employee or senior management member of Applicant's organization ever been convicted of a felony or any other serious crime and/or are there any legal proceedings of this nature pending?
(___ Yes) (✓ No)
***If yes,** describe (include names, dates, and explanations)*

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

(e) Has the Applicant or any of its owners, principal officers, directors or employees working on behalf of AAR Indamer Technics ever been listed on a denied parties or watch list published or issued by any government agency? (___ Yes) (✓ No)
*If yes, describe (include names, dates, and explanations)*

(f) Has the Applicant or any of its owners, principal officers, directors or employees working on behalf of AAR Indamer Technics ever been debarred, suspended, or otherwise deemed ineligible for any government programs (including, but not limited to, import/export privileges)?
(___ Yes) (✓ No)
*If yes, describe (include names, dates, and explanations)*

**DOCUMENTS TO BE RETURNED BY APPLICANT:**

1. CV/Resume for each person listed in section 2f
2. Applicant's Certificate of Incorporation (See Question 3 above)
3. Registration Certificate and Required Licenses or Permits (See Question 3 above)
4. Signed and completed questionnaire (This Document)
5. Signed Anti-Corruption Certification (Attachment A of this document)
6. Signed Authorization for Release of Information (Attachment B of this document)

**By signing below, I represent that I am authorized to certify on behalf of Applicant that the foregoing responses and explanations are, to the best of my knowledge and belief, accurate, current, and complete. I agree to notify AAR Indamer Technics promptly of any material changes to the information provided herein.**

Signature: _____

Print Name: VIJAY MAHADEO TARAK

Title: DIRECTOR

Date: 19th JAN 2019.

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

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## Attachment A
## Anti-Corruption Compliance Certification

The undersigned, a duly authorized representative of the Applicant identified below, hereby certifies that:

1. APPLICANT acknowledges and understands that (i) AAR Indamer Technics does not tolerate any form of bribery or corruption in the conduct of its business and/or business conducted by or for any subsidiary, operating unit, joint venture or other affiliate (collectively, "AAR"), and (ii) it is a violation of AAR Indamer Technics policy for any employee or agent, including APPLICANT, to:
   - Offer, pay, authorize to pay, or promise money, gifts or anything of value, including but not limited to bribes, entertainment, kickbacks or any benefit, directly or indirectly, to any company or person, whether a public official or an employee of a private company, in order to improperly secure or retain business or to obtain, retain, or secure an improper advantage in the conduct of business for AAR; and/or
   - Solicit or accept any payment or other benefit described above in connection with the performance of any service or other activity on behalf of AAR.
2. APPLICANT is in receipt of AAR Indamer Technics's Guide for Third Party Representatives on Anti-Corruption Requirements (the "AAR Guide"). Further, APPLICANT has read, understood, and agrees to abide by the requirements stated in the AAR Guide.
3. APPLICANT is committed to doing business free of any bribery or other forms of corruption. APPLICANT will not, directly or indirectly, offer, pay, authorize to pay, or promise money, gifts or anything of value, whether in cash or in kind, to or for the benefit of any party in order to improperly secure or retain business, or to obtain, retain or secure an improper advantage in the conduct of business for AAR Indamer Technics;
4. APPLICANT will not directly or indirectly solicit or accept money, gifts or anything of value, whether in cash or in kind, in connection with the performance of any service or activity for or on behalf of AAR Indamer Technics;
5. APPLICANT certifies that it will notify Company immediately of any request received by APPLICANT to make, authorize or facilitate a payment of money or anything of value in violation of applicable anti-corruption laws;
6. Neither APPLICANT nor any of its officers, directors, employees, or other agents has ever been charged, prosecuted, or convicted of violating the U.S. Foreign Corrupt Practices Act, the UK Bribery Act, the Indian Prevention of Corruption Act or any other law or regulation related to corruption or bribery;
7. APPLICANT acknowledges and understands that it must keep complete and accurate books and records related to its services and activities on behalf of AAR Indamer Technics and that such books and records must comply with internationally accepted accounting standards;
8. APPLICANT will, upon request, make its books and records related to its services and activities on behalf of AAR Indamer Technics available to AAR Indamer Technics or its designees for audit to verify compliance with applicable anti-corruption laws;
9. APPLICANT is not wholly or partially owned, or directly or indirectly controlled by any government, government official, or political party; and
10. APPLICANT will immediately notify the AAR Indamer Technics if there are any changes to the representations made in the preceding statements of this certification.

Applicant/Company Name: NIHVA TECHNOLOGIES PVT LTD

Signature:

Printed Name: VIJAY MAHADEO TARAK

Title: DIRECTOR

Date: 19th JAN 2019

NIHVA TECHNOLOGIES PVT. LTD. PUNE

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**Attachment B**

***RELEASE OF INFORMATION AUTHORIZATION, AND RELEASE AND HOLD HARMLESS FROM LIABILITY***

I authorize the AAR Indamer Technics and/or its agents as defined below, to: conduct a verification of education, employment/work history and credit history, search motor vehicle records, contact references, search criminal history record information pertaining to me and/or receive an investigative consumer report which can include credit standing, credit capacity, character and/or general reputation. Every attempt will be made to keep the information confidential.

I have read and understand this authorization for release of information, and I authorize the background investigation which could include consumer report / investigative consumer report and verification. I authorize persons, schools, current and former employers, and other organizations and agencies to provide AAR Indamer Technics with any information that is requested, and I hereby release, and hold harmless, all of the persons and agencies providing such information from any and all claims and damages connected with their release of information. I agree that any copy of this document is as valid as the original.

I further agree to forever release, discharge, and hold harmless AAR Corp., AAR Indamer Technics, its agents, directors, employees, subsidiaries, affiliates, and representatives from any claims, damages, losses, liabilities, costs and expenses (including attorney and legal fees), or any other charge or complaint filed, arising from the retrieving, reporting, and using the information referred to above.

***I HAVE CAREFULLY READ, FULLY UNDERSTAND, AND VOLUNTARILY SIGN THE ABOVE AUTHORIZATION, RELEASE AND HOLD HARMLESS PROVISIONS. I UNDERSTAND THAT THIS IS A BINDING LEGAL DOCUMENT AND SIGN IT KNOWING THAT I ASSUME ALL RISK AND RESPONSIBILITY ASSOCIATED WITH THE INFORMATION BEING RELEASED, REPORTED, AND USED.***

Applicant / Company Name: _____

Signature: _____

Print Name: VIJAY MAHADEO TARAL

Title: DIRECTOR

Date: 19th JAN 2019.

PUNE * NIHVA TECHNOLOGIES PVT. LTD. *

सत्यमेव जयते

(2)

**Government of India**

**Form GST REG-06**

*[See Rule 10(1)]*

**Registration Certificate**

**Registration Number :27AAECN0437H1ZM**

| | | | | | | |
|---|---|---|---|---|---|---|
| 1. | **Legal Name** | NIHVA TECHNOLOGIES PRIVATE LIMITED | | | | |
| 2. | **Trade Name, if any** | NIHVA TECHNOLOGIES PRIVATE LIMITED | | | | |
| 3. | **Constitution of Business** | Private Limited Company | | | | |
| 4. | **Address of Principal Place of Business** | FIRST FLOOR ABOVE RENAULT SHOWROOM, PLOT NO-187, G-BLOCK, THERMAX CHOWK MIDC, CHINCHWAD, | | | | |
| 5. | **Date of Liability** | 01/07/2017 | | | | |
| 6. | **Period of Validity** | From | 01/07/2017 | To | NA | |
| 7. | **Type of Registration** | Regular | | | | |
| 8. | **Particulars of Approving Authority** | | | | | |
| | Signature | | | | | |
| | Name | | | | | |
| | Designation | | | | | |
| | Jurisdictional Office | | | | | |
| | 9. Date of issue of Certificate | 22/09/2017 | | | | |

Note: The registration certificate is required to be prominently displayed at all places of business in the State.

**This is a system generated digitally signed Registration Certificate issued based on the deemed approval of the application for registration**

NIHVA TECHNOLOGIES PVT. LTD. PUNE

For NIHVA TECHNOLOGIES PRIVATE LIMITED

Director

सत्यमेव जयते

Annexure B

(1)

| | |
|---|---|
| GSTIN | 27AAECN0437H1ZM |
| Legal Name | NIHVA TECHNOLOGIES PRIVATE LIMITED |
| Trade Name, if any | NIHVA TECHNOLOGIES PRIVATE LIMITED |

**Details of Managing / Whole-time Directors and Key Managerial Persons**

| | | | |
|---|---|---|---|
| 1 | | Name | VIJAY MAHADEO TARAK |
| | | Designation/Status | DIRECTOR |
| | | Resident of State | Maharashtra |

NIHVA TECHNOLOGIES PVT.LTD. * PUNE *

For NIHVA TECHNOLO...

Director

NIHVA TECHNOLOGIES PVT.LTD. * PUNE *

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# प्रारुप 1
# पंजीकरण प्रमाण-पत्र

कॉर्पोरेट पहचान संख्या : U72900PN2012PTC143948 2012 - 2013

मैं एतदद्वारा सत्यापित करता हूँ कि मैसर्स

NIHVA TECHNOLOGIES PRIVATE LIMITED

का पंजीकरण, कम्पनी अधिनियम 1956 (1956 का 1), के अंतर्गत आज किया जाता है और यह कम्पनी प्राइवेट लिमिटेड है।

यह निगमन-पत्र आज दिनांक पांच जुलाई दो हजार बारह को पूणे में जारी किया जाता है।

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# Form 1
# Certificate of Incorporation

Corporate Identity Number : U72900PN2012PTC143948 2012 - 2013

I hereby certify that NIHVA TECHNOLOGIES PRIVATE LIMITED is this day incorporated under the Companies Act, 1956 (No. 1 of 1956) and that the company is private limited.

Given at Pune this Fifth day of July Two Thousand Twelve.

Signature Not Verified
Digitally signed by Shrinivasan Vijay Kumar
Date: 2012.07.05 17:22:07 GMT-05:30

Registrar of Companies, Maharashtra, Pune
कम्पनी रजिस्ट्रार, महाराष्ट्र, पूणे

*Note: The corresponding form has been approved by SHAMRAO DATTATRAY PATIL, Assistant Registrar of Companies and this certificate has been digitally signed by the Registrar through a system generated digital signature under rule 5(2) of the Companies (Electronic Filing and Authentication of Documents) Rules, 2006.
The digitally signed certificate can be verified at the Ministry website (www.mca.gov.in).

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कम्पनी रजिस्ट्रार के कार्यालय अभिलेख में उपलब्ध पत्राचार का पता :
Mailing Address as per record available in Registrar of Companies office:
NIHVA TECHNOLOGIES PRIVATE LIMITED
8/1, COROMANT HSG SOCIETY, SECTOR 27, PRADHIKARAN NIGDI,
PUNE - 411044,
Maharashtra, INDIA

NIHVA TECHNOLOGIES PVT. LTD. PUNE